

Operation SUMMER

Tactic



Operation Type

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Operation SUMMER

Tactic



Pro-active operation to safeguard high risk CSE victims.

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Operation SUMMER

Tactic



There are various tactics deployed to safeguard CSE victims. Operation SUMMER is the seizure of

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Operation SUMMER

Tactic



undergarments from victims involved in CSE which provides the platform to produce credible

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Operation SUMMER

Tactic



indisputable evidence. It presents the opportunity to;

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Operation SUMMER

Tactic



- Map offenders across areas

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Operation SUMMER

Tactic



- Link to other criminality and opportunities that present themselves for alternative

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Operation SUMMER

Tactic



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Operation SUMMER

Tactic



- Tiered intervention plans to mitigate or manage the threat posed including the

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Operation SUMMER

Tactic



application for civil interventions such as SRO's

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Operation SUMMER

Tactic



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Operation SUMMER

Tactic



It is a statutory responsibility for the sharing of information with partner agencies. Internally, good

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Operation SUMMER

Tactic



communication channels have been built with the police and allocated social workers to assist with

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Operation SUMMER

Tactic



the holistic approach to the victims under the operation SUMMER tactic supporting both the victims

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Operation SUMMER

Tactic



and their families providing support and signposting.

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Operation SUMMER

Tactic



The tactic is necessary for the protection of the victims and future victims involved in CSE.

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Operation SUMMER

Tactic



proportionate in what we seek to achieve and legitimate in the lawful process having due regard to

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Operation SUMMER

Tactic



PACE and RIPA legislation.

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Operation SUMMER

Tactic



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Operation SUMMER

Tactic



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Operation SUMMER

Tactic



In the commissioning of this tactic within West Midlands Police, it was agreed that only individuals

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Operation SUMMER

Tactic



aged 14 or under who have been recorded on COMPACT as a MISPER on at least one occasion

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Operation SUMMER

Tactic



between a 3 month period would be considered. (Alternative parameters could be set according to

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Operation SUMMER

Tactic



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Operation SUMMER

Tactic



- Combined number of absences and MISPER episodes

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Operation SUMMER

Tactic



- Whether they have been in/found in “risky” situations whilst absent/missing

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Operation SUMMER

Tactic



- Whether they are linked to other known CSE victims

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Operation SUMMER

Tactic



- Whether there is any current (within 3 months) intelligence detailing CSE type

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Operation SUMMER

Tactic



behaviour/concerns

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Operation SUMMER

Tactic



After the WMP trialed the above two months, it then morphed into parameters to include:

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Operation SUMMER

Tactic



- Any young individuals who are flagging as being of serious concern of being at risk of

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Operation SUMMER

Tactic



CSE but who haven't as of yet been recorded as MISPERs. This therefore allows plans to be

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Operation SUMMER

Tactic



ready in place for if that individual goes missing allowing early intervention and prevention.

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Operation SUMMER

Tactic



- Any individuals who don't fit within the current age criteria but are considered

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Operation SUMMER

Tactic



vulnerable, due to learning difficulties for example, and for whom there are increasing

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Operation SUMMER

Tactic



concerns CSE for and realistic opportunities to collect forensic evidence.

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Operation SUMMER

Tactic



- In partnership with CSE co-ordinators work closely with the children and their

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Operation SUMMER

Tactic



parents or guardians to educate and reduce the risks around CSE.

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Operation SUMMER

Tactic



- Whenever possible seek support of parents and guardians to covertly seize their

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Operation SUMMER

Tactic



children's underwear.

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Operation SUMMER

Tactic



Rationale and Parameters

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Operation SUMMER

Tactic



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Operation SUMMER

Tactic



As it is impractical to seize the underwear of every child at risk of CSE certain criteria had to be put

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Operation SUMMER

Tactic



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Operation SUMMER

Tactic



Age: the team focused on individuals aged 14 and below.

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Operation SUMMER

Tactic



- The younger the child, the more likely we are to be able to prove in court that the

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Operation SUMMER

Tactic



perpetrator believed that they were under the age of consent, despite any assertions to the

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Operation SUMMER

Tactic



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Operation SUMMER

Tactic



- It was also considered that targeting the “younger” children would provide greater

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Operation SUMMER

Tactic



opportunity to prevent further CSE by way of educating parent/guardians in addition to

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Operation SUMMER

Tactic



assisting with the necessary agencies providing support to the child before becoming deeply

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Operation SUMMER

Tactic



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Operation SUMMER

Tactic



- It was also perceived that the older the child became, the more aware of forensic

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Operation SUMMER

Tactic



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Operation SUMMER

Tactic



Missing Episodes:

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Operation SUMMER

Tactic



- The number of missing episodes a child has been subject of should be considered, as

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Operation SUMMER

Tactic



sexual exploitation is inextricably linked to going missing, and so the “Golden Hour” for

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Operation SUMMER

Tactic



obtaining this evidence is upon the victim's return. The more often the child goes missing

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Operation SUMMER

Tactic



the more opportunities there are to gather this proof, which said, the most recent missing

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Operation SUMMER

Tactic



episodes need to be relatively current so that the technique is effective.

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Operation SUMMER

Tactic



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Operation SUMMER

Tactic



Risk Assessment

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Operation SUMMER

Tactic



The risk assessment of the child will be borne in mind, however not necessarily in the conventional

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Operation SUMMER

Tactic



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Operation SUMMER

Tactic



Those at Serious Risk (i.e. High Risk) of CSE are often subject of enhanced safeguarding procedures

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Operation SUMMER

Tactic



by the police, social services and third sector agencies, therefore once graded as such the risk to

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Operation SUMMER

Tactic



them should, in theory at least, be reduced.

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Operation SUMMER

Tactic



It may therefore be advantageous to consider those at medium/low Risk for preventative purposes.

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Operation SUMMER

Tactic



Regard should also be taken as to links to known perpetrators of CSE, if intelligence suggests that a

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Operation SUMMER

Tactic



child has links to more than one man, especially where the age gap is significant, the more likely it is

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Operation SUMMER

Tactic



that the child is being exploited by numerous men.

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Operation SUMMER

Tactic



Consideration has been given around the interfamilial effect whereby the child is made aware that

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Operation SUMMER

Tactic



Police have taken away their undergarments covertly. Family/guardians are briefed on Police powers

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Operation SUMMER

Tactic



and where necessary should lay any “blame” on the Police taking away underwear as part of our

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Operation SUMMER

Tactic



police powers under S 19 PACE- search and seize. Section 3(1) Children Act 1989 defines Parental

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Operation SUMMER

Tactic



Rights as all rights, duties, powers, responsibilities and authority which by law a parent of a child has

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Operation SUMMER

Tactic



in relation to that child and their *property*.

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Operation SUMMER

Tactic



Whilst it would be preferable for officers to recover under s.19 PACE (for the reasons set out in the

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Operation SUMMER

Tactic



document), a local authority can recover underwear belonging to a child in its care or foster care.

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Operation SUMMER

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Any individual with Parental Responsibility could also do the same (when child not under care of LA).

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Operation SUMMER

Tactic



Provided the recovery is done safely/sensibly, it should be possible that physical evidence contained

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Operation SUMMER

Tactic



in the underwear could still be used to full effect in related legal proceedings.

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Operation SUMMER

Tactic



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Operation SUMMER

Tactic



Contingency/Finance

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Operation SUMMER

Tactic



Operation SUMMER has been allocated a cost code whereby all submissions are subject to monetary

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Operation SUMMER

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scrutiny. This has also been subject to management approval at forensic submissions providing the

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Operation SUMMER

Tactic



buy in and understanding from all stakeholders.

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Operation SUMMER

Tactic



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Operation SUMMER

Tactic



Covert Tactics

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Operation SUMMER

Tactic



Following on from the focused identification of Op SUMMER victims, a considered approach has

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Operation SUMMER

Tactic



been made based on intelligence for the deployment of directed surveillance. Such an approach will

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Operation SUMMER

Tactic



be weighted on risk and supportive intelligence and at all times will have a senior investigation

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Operation SUMMER

Tactic



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Operation SUMMER

Tactic



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Operation SUMMER

Tactic



Overarching Outcomes

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Operation SUMMER

Tactic



- Reduced risk and positive engagement shared with CSE co-ordinators and allocated

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Operation SUMMER

Tactic



Social Workers

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Operation SUMMER

Tactic



- Significantly increased risk identified and shared with CSE co-ordinators and

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Operation SUMMER

Tactic



Allocated Social Workers

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Operation SUMMER

Tactic



- Directed surveillance deployed direct on victims to deal with at risk intelligence

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Operation SUMMER

Tactic



- Development of covert operations to tackle high risk locations

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Operation SUMMER

Tactic



- Increased intelligence collected surrounding high risk locations

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Operation SUMMER

Tactic



- Increased civil intervention- SRO's

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Operation SUMMER

Tactic



- Positive CJ outcomes

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Operation SUMMER

Tactic



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Operation SUMMER

Tactic



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Operation SUMMER

Tactic



With regard to the practicality of seizing a child's underwear we need to consider what powers we

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Operation SUMMER

Tactic



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Operation SUMMER

Tactic



If officers are lawfully on premises then they can rely on **Sec 19 of PACE**, however we must have

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Operation SUMMER

Tactic



regard for the sensitivity in which this power is exercised, although reasonable force can be used,

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Operation SUMMER

Tactic



clearly this would not be an appropriate use of power. Seizure can be done either overtly or

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Operation SUMMER

Tactic



covertly, however to protect the tactic, and prevent any need to exercise force, a covert seizure

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Operation SUMMER

Tactic



_____ would be preferable although it's acknowledged that this may not always be practical. This will

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Operation SUMMER

Tactic



generally be dependent on how supportive family members are, however it would be rather

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Operation SUMMER

Tactic



concerning if they were against the opportunity to identify perpetrators of sexual abuse, indeed it

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Operation SUMMER

Tactic



could form part of a working agreement within any Child Protection Plan. Co-operation with the

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Operation SUMMER

Tactic



tactic has not been an issue for SUMMER where the child resides in a care home or with foster

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Operation SUMMER

Tactic



carers.

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Operation SUMMER

Tactic



Legal Powers

As an alternative to the power under s66 25 there should be a consideration to the use of a s66 3

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Operation SUMMER

Tactic



PACE warrant, so as to prevent any issues of unlawfully being on premises. It may be advantageous

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Operation SUMMER

Tactic



to obtain the warrant when the identified victim goes missing so it is available upon their return;

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Operation SUMMER

Tactic



missing episodes tend to be for a relatively short amount of time and so the warrant is likely to still

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Operation SUMMER

Tactic



be in date. There is also the possibility of obtaining a multiple entry warrant for those victims that go

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Operation SUMMER

Tactic



missing on such a regular basis that the obtaining of such would be beneficial, and therefore negate

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Operation SUMMER

Tactic



the need to obtain numerous warrants. Section 3(1) Children Act 1989 defines Parental Rights as all

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Operation SUMMER

Tactic



rights, duties, powers, responsibilities and authority which by law a parent of a child has in relation

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Operation SUMMER

Tactic



to that child and their *property*.

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Operation SUMMER

Tactic



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Operation SUMMER

Tactic



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Operation SUMMER

Tactic



Human Rights

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Operation SUMMER

Tactic



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Operation SUMMER

Tactic



The Police, like other Public Authorities and bodies performing public functions, are bound by the

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Operation SUMMER

Tactic



Human Rights Act 1998 and in particular section 6 of the Act, which states that it is unlawful to act

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Operation SUMMER

Tactic



incompatibly with a European Convention on Human Rights (ECHR) right incorporated by the Act. We

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Operation SUMMER

Tactic



recognise that the most relevant right for these purposes, the right to privacy under Article 8 ECHR,

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Operation SUMMER

Tactic



may be engaged in relation to the seizure of undergarments.

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Operation SUMMER

Tactic



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Operation SUMMER

Tactic



However, Article 8 is a qualified right, and it may be restricted where the restriction is lawful for a

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Operation SUMMER

Tactic



legitimate aim, necessary and proportionate.

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Operation SUMMER

Tactic



Developing a Child Safety Commitment Statement

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Operation SUMMER

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Operation SUMMER

Tactic



~~This document has been developed to assist your organisation to develop a Child Safety~~

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Operation SUMMER

Tactic



Commitment Statement.

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Operation SUMMER

Tactic



It should be used in conjunction with other available resources such as that available from the New

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Operation SUMMER

Tactic



South Wales (NSW) Office of Children Guardian, Victorian Commissioner for Children and Young

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Preventing crime, protecting the public and helping those in need
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Tactic



People and the Commonwealth government National Office for Child Safety.

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Tactic



Part One

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Operation SUMMER

Tactic



Q1: Are you required to comply with the Child Safe Standards?

Q2: If you are not required to comply with the Child Safe Standards should you seek to comply to protect the integrity and reputation of your organisation?

Q3: What type of organisations are you i.e. sporting, transport, education, religious, amusement, out of home care etc

Q4: What existing overarching documents do you have which state what your purpose is?

Refer to Strategic Plans, Annual Plans, Business Plan, Marketing, Websites content

Q5: Are you a member of an Association and what documentation may be available which may assist you develop a Child Safety Commitment Statement?

Q6: What process will you use to develop this?

Remember this Statement reflects who your organisation currently is and aspires to be. Be what you are and not what you are not.

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Operation SUMMER

Tactic



Part Two (Developing a Commitment Statement)

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Operation SUMMER

Tactic



When developing key organisational documentation a common mistake authors make is not

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Operation SUMMER

Tactic



undertaking appropriate preparation.

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Operation SUMMER

Tactic



The words in the document are important and they MUST reflect and be able to achieved and

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Operation SUMMER

Tactic



maintained by your organisation.

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Operation SUMMER

Tactic



Engagement with key stakeholders is important as the Child Safety Commitment Statement should

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Operation SUMMER

Tactic



reflect the views of many, such as a Committee.

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Operation SUMMER

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Operation SUMMER

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Operation SUMMER

Tactic



The table below may assist your preparation. It may be useful to complete this exercise as a group or

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Operation SUMMER

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individually and compare responses.

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Operation SUMMER

Tactic



List your organisations key functions

List how your organisation interacts with

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Operation SUMMER

Tactic



children and young persons

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Operation SUMMER

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Operation SUMMER

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Operation SUMMER

Tactic



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Operation SUMMER

Tactic



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Operation SUMMER

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Operation SUMMER

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Operation SUMMER

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Operation SUMMER

Tactic



State your top five (5) child safety risks based

State 5 child-safe challenges your organisation

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Operation SUMMER

Tactic



on what your organisation does

has with members, participants etc

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Operation SUMMER

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Operation SUMMER

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Operation SUMMER

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Operation SUMMER

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Operation SUMMER

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Operation SUMMER

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Operation SUMMER

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Tactic



What expectations do your members have

What expectations does any association or

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about child Safety?

governing body have about child Safety?

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Operation SUMMER

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Operation SUMMER

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Operation SUMMER

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Operation SUMMER

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Operation SUMMER

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Operation SUMMER

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Operation SUMMER

Tactic



Table 1 The Brainstorming Process

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Part Three The parts of a Child Safety Commitment Statement



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The suggested parts are outlined below with a brief explanation of each area. The Statement should use the public



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template that your organisation utilises for key Policies.



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~~A Child Safety Policy is different to a Child Safety Commitment Statement. The Commitment Statement public~~



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commits your organisation to follow and embed child safe approaches. In contrast the Child Safety Policy outlines



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how this is achieved.



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~~It is recommended these Policies are not combined so as to not complicate your organisations messaging.~~



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Section

Description



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Title

States the title.



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Examples include Child Safety Commitment Policy



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First paragraph

States clearly your commitment to the safety of children and young



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persons (remember these are two different groups of persons),



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safeguarding their interests and promoting the dignity and rights of these



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persons, including the vulnerable.



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This does not state how you achieve this. Remember these will be



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outlined in other Policies etc.



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Second paragraph

States you have zero tolerance for child abuse. Note this should not solely



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focus on sexual abuse as there are various type of abuse. Further systems



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are utilised to respond to and report allegations in a timely manner.



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Third Paragraph

Refers specifically to vulnerable persons and states that an organisation



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seeks to recognise and respond to children and young persons



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vulnerability in a respectful and caring manner.



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This can also recognise aspects such as the cultural safety of Aboriginal



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children, the cultural safety of children from culturally and/or linguistically



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diverse backgrounds, and to providing a safe environment for children



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with a disability.



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Fourth paragraph

Where there has been previous failings this may be recognised broadly.



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Fifth paragraph

There are various ways to now specify what is committed to however the



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use of short statements (such as in bullet form) can be effective.



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Key commitments should be as follows:



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— A commitment to a culture of safeguarding where children and



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young persons are happy, safe and feel empowered



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— A commitment to comply with legal requirements. These can be



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listed briefly



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— A commitment to those who care for children and young persons



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being committed to protecting the rights of children and young



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persons in their care



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— A commitment to listen to the voice of children and young



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persons and utilise approaches to assist them to be heard, as well



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as ensuring they feel empowered



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— A commitment that the organisations leaders understand and



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oversight the safeguarding in the organisations



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— A commitment to provide relevant persons with appropriate



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training in key safeguarding areas



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— A commitment to have Policies and Procedures which give effect



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to the approach to safeguarding



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— The use of a risk based approach to manage safeguarding



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responsibilities



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— A commitment to utilise a complaints system which allows



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persons to raise concerns, be supported and which ensures a



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consistent process is followed to manage complaints



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— A culture of reporting as required in a timely manner to



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appropriate organisations



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— A commitment to utilise appropriate employment process to



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screen , interview and employ staff



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— A commitment to create a safe physical and online environment



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which is appropriately oversighted



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— A commitment to comply with Privacy requirements, as required



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at law such as that relating to personal identifiers and information



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Six

States you maintain appropriate records, as required by law which are



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appropriately stored and retain in accordance with legal requirements.



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Seven

States that you review your child safety and approach on a regular basis



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such as each 18–24 months.



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